

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2205

By: Lay

AS INTRODUCED

An Act relating to marriage; amending 43 O.S. 2021, Section 7, as amended by Section 3, Chapter 241, O.S.L. 2022 (43 O.S. Supp. 2024, Section 7), which relates to marriage ceremonies; modifying who may perform formal ceremonies; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43 O.S. 2021, Section 7, as amended by Section 3, Chapter 241, O.S.L. 2022 (43 O.S. Supp. 2024, Section 7), is amended to read as follows:

Section 7. A. All marriages must be contracted by a formal ceremony performed or solemnized in the presence of at least two adult, competent persons as witnesses, by a judge or retired judge of any court in this state, or an ordained or authorized preacher or minister of the Gospel, priest, deacon, elder, or other ecclesiastical dignitary of any denomination who has been duly ordained or authorized by the church to which he or she belongs to

1 preach the Gospel, or a rabbi and who is at least eighteen (18)
2 years of age.

3 B. 1. The judge shall place his or her order of appointment on
4 file with the office of the court clerk of the county in which he or
5 she resides.

6 2. The preacher, minister, priest, deacon, elder, rabbi, or
7 ecclesiastical dignitary shall certify on the marriage certificate
8 that he or she holds credentials or authority from his or her church
9 or synagogue authorizing him or her to solemnize marriages.

10 C. No person herein authorized to perform or solemnize a
11 marriage ceremony shall do so unless he or she has good reason to
12 believe the persons presenting themselves before him or her for
13 marriage are the identical persons named in the license, and for
14 whose marriage the same was issued, and that there is no legal
15 objection or impediment to such marriage.

16 D. Marriages between persons belonging to the society called
17 Friends, or Quakers, the spiritual assembly of the Baha'is, or the
18 Church of Jesus Christ of Latter Day Saints, which have no ordained
19 minister, may be solemnized by the persons and in the manner
20 prescribed by and practiced in any such society, church, or
21 assembly.

22 SECTION 2. This act shall become effective November 1, 2025.
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24 60-1-11276 CMA 12/11/24